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General Comment

I am an everyday American who works as a librarian and in my sparetime makes art as a longtime passionate hobby. I have worked hard for years to develop the skills and knowledge to make art, and have been lucky enough to learn alongside friends who do make a living making art. Most of them earned a decent living via their passions. Until very recently that is.

The AI systems made by Big Tech companies like OpenAI (Microsoft) and Google threaten to destroy thousands of American small businesses with their recent demand to create special carve outs in copyright law.

AI systems can only be produced by first training on work made by people. My personal work and the work of hundreds of thousands of other everyday American creators was taken and fed into these AI systems without our consent or any compensation. This happened to both hobbyists and professionals, robbing them of their livelihoods.

They ingest their work, reassemble it, and then sell it back to clients – directly competing with creatives and cutting them out of the marketplace. And for lower quality work!!

Now these Big Tech companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use".

They seem to believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking. They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation. They behave as if the only way to bring new ideas to the table of their companies is to steal them.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate. It's to allow creativity to be worth investing in.

If we the American people do not own our creations, and everything we put online will be stolen by Big Tech giants, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

What impetus will people have to make or support new art, to further push boundaries? Particularly in Big Tech, which has stagnated for years. What Elon Musk promises of X is just a shambling, poorly made version of China's Weibo. How creative is that?

Want to protect American innovation? Protect American creators. Protect American ingenuity and reward them for their creative efforts. Do not create new copyright exemptions that allow Big Tech companies to exploit and steal from creators and everyday Americans without permission, compensation, or transparency. They will not innovate with this. They will only gobble up investor dollars to give us nothing.

This administration's AI Action Plan should focus not on giving away creator content to Big Tech companies, but rather on ensuring a fair marketplace with competition:

First, the government should ensure that creators and everyday Americans give effective consent, so that we can decide when and where our work is used by AI systems.

Second, the AI Action Plan should encourage a robust licensing marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just Big Tech.

Finally, the AI Action Plan should require transparency from Big Tech companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of hundreds of thousands of Americans and give it away to Big Tech by rewriting copyright law.